

PCU324051 Romero, Luis Fernando vs. Young's, Inc et al

County: tulare

Division: Civil Law and Motion

Department: 19

Hearing date: 2026-08-04

Motion: Defendant Young's, Inc.'s Motion to Compel Deposition of Plaintiff Romero

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Re: Romero, Luis Fernando vs. Young's, Inc et al

Case No.: PCU324051

Date: August 4, 2026

Time: 8:30 A.M.

Dept. 19-The Honorable Russell P. Burke

Motion: Defendant Young's, Inc.'s Motion to Compel Deposition of Plaintiff Romero

Tentative Ruling: To find the motion moot; to impose sanctions against Plaintiff, and counsel of record, in the amount of \$1,110 due no later than fifteen (15) days from the date of this hearing.

Facts

In this class action matter, Plaintiff alleges a number of Labor Code and Business and Professions Code violations against Defendant.

On July 9, 2026, Defendant filed this motion to compel the deposition of Plaintiff.

In support, Defendant states that, on September 11, 2025, a notice of deposition of Plaintiff was served setting the deposition initially for October 10, 2025. (Declaration of Tapia ¶3.) On October 6, 2025, Plaintiff served an objection and indicated Plaintiff would not be produced on this date. (Declaration of Tapia ¶7.)

Defendant has served additional deposition notices, including one setting the deposition for June 15, 2026 in Los Angeles, a location requested by Plaintiff. (Declaration of Tapia ¶¶9-25.) On June 13, 2026, Plaintiff served an objection to the deposition. (Declaration of Tapia ¶26.)

On June 15, 2026, Defendant, via counsel, appeared at the deposition along with Defendant's representative, a court reporter, a videographer and a Spanish translator. (Declaration of Tapia ¶31.) Neither Plaintiff nor counsel attended the

deposition and a notice of non-appearance was taken by Defendant. (Declaration of Tapia ¶32.)

Therefore, Defendant's counsel indicates attempts to contact Plaintiff's counsel regarding the non-appearance. (Declaration of Tapia ¶¶34-47.)

Defendant seeks, as sanctions \$9,225 in attorneys' fees (20.5 hours at \$450 per hour), \$3,488 in costs related to the deposition and \$60 filing fee cost.

Defendant has filed a notice of non-opposition to this motion.

On July 29, 2026, Plaintiff filed a late opposition to this motion. Plaintiff indicates that Plaintiff's deposition occurred July 16, 2026 and therefore the motion to compel is moot. Further, that the completed deposition does not require that the Court award sanctions.

Authority and Analysis

The Court agrees that, where the deposition has taken place, no motion to compel the deposition may be ordered.

However, as acknowledged by Plaintiff, California Rule of Court, rule 3.1348(a) states:

"The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed."

As to sanctions, section 2025.040(g)(1), which states "...the court shall impose monetary sanctions under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent...unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

Section 2023.030 similarly indicates monetary sanctions include "reasonable expenses, including attorney's fees, incurred by anyone as a result of" absent substantial justification or other such circumstances. (Code Civ. Proc. § 2023.030, subd. (a).)

The Court will award sanctions as to the filing of this motion.

However, the Court will reduce the hourly rate to \$350. The reasonable hourly rate is that prevailing in the community for similar work." (PLCM Group Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.) "The experienced trial judge is the best judge of the value of professional services rendered in his court." (Id.)

Additionally, the Court will reduce the 8.5 hours incurred drafting the motion to 3 hours, will not award anticipated time or the time as to the notice of non-opposition or objection.

As such, the Court awards \$1,050 in attorneys' fees as to this motion. Further, the Court will award the \$60 filing fee related to this motion, for a total of \$1,110.

Second, Plaintiff indicates it has satisfied the invoice as non-appearance fees and therefore no sanctions should be imposed as to this expense.

Third, as to the travel costs and time, the Court notes "Any party, other than the deponent, or attorney of record may appear and participate in an oral deposition by telephone, videoconference, or other remote electronic means...." (Cal. Rules of Court, rule 3.1010(b)-(c) [emphasis added].) Here, attendance by counsel in person appears optional. The Court will not award the travel costs or attorney hours incurred via travel.

Therefore, the Court imposes sanctions, in total, of \$1,750 against Plaintiff and counsel of record, jointly and severally, due no later than thirty (30) days from the date of the signed order.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.